



United States
Attorney's Office
Northern District of Georgia



Robert Burkich, M.D. Settles Case Alleging that he Submitted False Claims for Chelation Therapy to Medicare

Friday, March 14, 2025

For Immediate Release

U.S. Attorney's Office, Northern District of Georgia

ROME, Ga. - Robert Burkich, M.D., of Chattanooga, Tennessee and Preventive Medicine Anti-Aging & Chelation, Inc., his practice in Ringgold, Georgia, have settled claims under the False Claims Act to resolve allegations that they knowingly submitted false claims to Medicare for medically unnecessary chelation therapy.

"By falsely certifying that services provided to patients are medically necessary, healthcare providers deplete the resources available to Medicare beneficiaries who are actually in need of care," said Acting U.S. Attorney Richard S. Moultrie, Jr. "In coordination with our law enforcement partners, our Office will continue to identify and pursue individuals who commit acts of waste, fraud, and abuse against the Medicare program."

"Providers who knowingly submit unreasonable and medically unnecessary claims prioritize personal profits over their duty to patients and federal health care programs," said Kelly J. Blackmon, Special Agent in Charge of the U.S. Department of Health and Human Services Office of Inspector General (HHS-OIG). "HHS-OIG, in partnership with our law enforcement allies, remains committed to investigating fraudulent billing practices that undermine the integrity of federal health care programs and jeopardize the well-being of beneficiaries."

"We must assure patients and taxpayers that the care provided by federally- funded healthcare programs is dictated by clinical needs, not fiscal greed," said Paul Brown, Special Agent in Charge of FBI Atlanta. "The FBI and our partners are committed to combining resources to investigate and hold providers accountable for billing the government only for necessary services."

The United States alleges that between September 2009 and January 2017, Dr. Burkich billed Medicare for administering the chelation drug edetate calcium disodium (EDTA) to Medicare beneficiaries who

were not suffering from lead poisoning. EDTA is a rarely used drug that is indicated for use only in individuals suffering from lead poisoning and lead encephalopathy.

Medicare has several long-standing rules preventing reimbursement for EDTA when not used for cases of lead poisoning or lead encephalopathy. The United States alleges that Dr. Burkich falsely represented to Medicare that his patients suffered from lead poisoning or other heavy-metal-related diseases to avoid Medicare's restrictions and obtain reimbursement.

Based on these allegations, the U.S. Attorney's Office for the Northern District of Georgia filed suit against Dr. Burkich and his practice, accusing them of violating the False Claims Act, 31 U.S.C. 3729, *et seq.* That statute prohibits, among other conduct, the knowing submission of false claims for payment to government agencies. The case is titled *United States v. Burkich et al.*, No. 1:19-cv-03510-MLB (N.D. Ga.).

The settlement was reached under the Department of Justice's ability-to-pay guidelines, which can be used to settle cases where defendants lack the financial ability to pay a merits-based settlement. The guidelines require defendants to submit to a rigorous financial analysis to determine their ability to pay a settlement. Per the resolution, Dr. Burkich and his practice will jointly pay \$700,000 to the United States to be used as restitution to Medicare.

This matter was litigated by Assistant U.S. Attorney Anthony DeCinque and former Assistant U.S. Attorney Paris Wynn.

The claims resolved by the settlement are allegations only, and there has been no determination of liability.

For further information please contact the U.S. Attorney's Public Affairs Office at USAGAN.PressEmails@usdoj.gov or (404) 581-6280. The Internet address for the U.S. Attorney's Office for the Northern District of Georgia is <http://www.justice.gov/usao-ndga>.

Updated March 14, 2025

Topics

FALSE CLAIMS ACT

HEALTHCARE FRAUD

Component

[USAO - Georgia, Northern](#)

Related Content



PRESS RELEASE

Texas Laboratory, Former CEO, and Florida Businessman Pay \$36.4 Million to Settle Health Care Fraud Allegations

Access DX Laboratory ("Access DX"), its former CEO Michael Stewart, and Florida businessman Harold Shatz will pay a combined total of \$36.4 million to resolve allegations that they violated the...

July 30, 2026

PRESS RELEASE

German Subsidiary in Peachtree City Settles PPP Fraud Claim for \$2.6 Million

Universal Environmental Services, LLC ("UES"), a Peachtree City, Georgia-based subsidiary of a large German conglomerate, will pay \$2.6 million to resolve allegations that the company violated the False Claims Act...

July 27, 2026

PRESS RELEASE

Two Georgia Men Charged in National Health Care Fraud Takedown

Today, United States Attorney Theodore S. Hertzberg announced criminal charges against two defendants for health care fraud schemes that exploited Medicare, Medicaid, and health care providers. The charges filed in...

June 24, 2026



Northern District of Georgia

Main Office:

